

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L0-24-R-0001**

☒ ORIGINAL

☐ ADDENDUM (attach copy of original J&A for add-ons or revisions)

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

NSN	NOMENCLATURE	BASE QTY / UI	VALUE	OPTION % / QTY	TOTAL VALUE WITH OPTION	AMC / AMSC	QCC
2990-01-679-4209	Muffler, Special	13		0% / 13 EA		1/C	EAA

End item, weapon system, or class of item: This solicitation is for a DLA Direct Requirement, PR 7004220676. Item noun name is Muffler, Special, end item is Aircraft Pressurized Cabin Leakage Tester (LPCLT).

This NSN for a Muffler, Special, is an item specifically designed to fit into the openings of various items to provide mechanical protection and/or prevent the entrance of foreign matter during painting, shipping storage, or the like. It is not designed to retain fluids under pressure during equipment operation. Excludes Plug (as Modified) and Stopper, Bottle.

Estimated value (base quantity: 13 EA):

Estimated total value (13 EA + 0% option quantity: 13 EA):

4. The statutory authority permitting other than full and open competition is:

10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.

5. If restricted to the only source(s) of supply, include source(s) and CAGE code:

Derbyshire Machine & Tool Co (71905) P/N H444-0601-A7, Globe Composite Solutions, LLC (82094) P/N H444-0601-A7 and Electric Boat Corporation (96169) P/N H444-0601-A7 are the only sources approved by the design control activity because these companies retain the data rights, manufacturing knowledge, or technical data that is not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part.

The use of authority cited above is supported by the following Acquisition Method Code (AMC) and Acquisition Method Suffix Code (AMSC):

AMC 1: Suitable for competitive acquisition for the second or subsequent time.

AMSC C. This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing knowledge by the qualified source(s) require acquisition of the part from the approved source(s). The approved source(s) retain data rights, manufacturing knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering

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activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid.

Product Specialist, [REDACTED] certified the following on 9/20/2023:

Derbyshire Machine & Tool Co (71905), Globe Composite Solutions, LLC (82094) and Electric Boat Corporation (96169) are the only sources capable of making this item. The Government does not own or possess the data or drawings for full and open competition. The approved sources are the only source known to possess the required drawings. There are not currently any 339's out to the Engineering Support Activity (ESA) and current information indicates that the item is not a commercial item. Technical Data Certification is attached. (See Attachment #1)

The use of the authority cited above is supported by the following Acquisition Method Code (AMC) and Acquisition Method Suffix Code (AMSC) of the NSN; which were confirmed as accurate by the Land Product Specialist on 9/11/2023. (See Attachment #2)

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

- A Sources Sought Notice was posted to www.SAM.gov on 9/11/2023 for 9 days.
- The acquisition will be synopsisized in SAM.gov at least 15 days prior to issuance of solicitation.
- The solicitation will be posted DLA Internet Bid Board System (DIBBS) for 30 days.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offer exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

Market research consisted of review of past procurements, market surveys received from interested parties, and internet sources.

Procurement history:

The PO History shows multiple prior awards:

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Smart Number (PIIN)	TIC	Vendor CAGE Code	Vendor Name	Quantity	Unit	Net Price	Award Date	Proc
SPE7L720P2787P00001	G	96169	ELECTRIC BOAT	1.000	EA	89250.00000	4/6/2020	BF
SPE7L720P2758P00001	K	96169	ELECTRIC BOAT	1.000	EA	89250.00000	3/25/2020	BF

A sources sought notice was posted on SAM.gov from 9/11/2023 to 9/19/2023. No response was received from the notice.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

A market survey was conducted on: 9/11/2023.

Techniques used to conduct survey: SAM.gov and e-mail correspondence.

Types of information requested: Business size, manufacturer or dealer, price breaks, commerciality, estimated delivery, and quantity sensitivity.

Total number of vendors contacted: 3

Derbyshire Machine & Tool Co (71905) Small Manufacturer P/N H444-0601-A7
Globe Composite Solutions, LLC (82094) Large Manufacturer P/N H444-0601-A7
Electric Boat Corporation (96169) Large Manufacturer P/N H444-0601-A7

Names of vendors and summary of information from responses:

DERBYSHIRE MACHINE & TOOL CO. (71805)

Small Manufacturer

Item is not commercial



GLOBE COMPOSITE SOLUTIONS INC. (82094)

Globe Composite Solutions did not respond to the market survey.

ELECTRIC BOAT CORP (61208)

Electric Boat did not respond to the market survey.

Commercial determination:

Buyer researched SAP, the Material Master, MM03, IDS and coordinated with the Product Specialist.

Market research in accordance with FAR Subpart 12.1 was conducted to determine the commerciality of

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this item. DLA Land and Maritime's Product Specialist indicated this item is not commercial on 9/11/2023. Vendor stated item is not commercial. Google search yielding no sources showing item to be commercial and sold to the general public. The item is only available from the approved sources as identified above. Product Specialist certification was on 9/11/2023. See Attachment 1. The EBS system under MM03, COTS field, generated by the Product Specialist, showed item as blank. The Contracting Officer determines the item is non-commercial, thus FAR 15 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

Based upon the technical certification on file in DLA Land and Maritime VEP technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is:

Derbyshire Machine & Tool Co. (71905)

11. This item is subject to the following methods of locating additional sources:

Solicitation contains DLA Procurement Notes L04 Offers for Part Numbered Items and M06 Evaluation of Offers for Part Numbered Items

12. Previous Justification for Other than Full and Open Competition:

The last buys were under SAT and therefore a J&A was not required.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

TUBBS.JOHN.
D.1076026684

Digitally signed by
TUBBS.JOHN.D.1076026684
Date: 2023.10.11 07:08:10
-04'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

DAPO.DOUGLA
S.A.1230220014

Digitally signed by
DAPO.DOUGLAS.A.1230220014
Date: 2023.10.11 15:14:14 -04'00'

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

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[X] Up to \$750,000

Contracting Officer

[X] \$750,000 to \$15,000,000

Competition Advocate

Attachment(s):

1. Memorandum for Record Technical Data Supporting Certification
2. Technical Referral